



National Institutes of Health
Office of Purchasing and Contracts



Clinical Center

Date: Nov 18, 2025

From: John Musachio
NIH Clinical Center, PET Department

Subject: JUSTIFICATION AND APPROVAL (J&A) – JUSTIFICATION FOR
OTHER THAN FULL AND OPEN COMPETITION

To: NATIONAL INSTITUTES OF HEALTH (NIH), CLINICAL CENTER (CC),
OFFICE OF PURCHASING AND CONTRACTS

1. AGENCY IDENTIFICATION AND CONTRACTING ACTIVITY:

AGENCY:

Point of Contact: John Musachio, PET Department

Point of Contact Phone #: [REDACTED]

Point of Contact Email: [REDACTED]

Requiring Activity: National Institutes of Health, Clinical Center, PET Department

Address: NIH Clinical Center
10 Center Drive
Building 10, Room 1C-498
Bethesda, MD 20892

Contracting Officer's Representative (COR) or Administrative Officer's (AO) Contact
Information:

Primary COR: Katrina Clay

Phone #: [REDACTED]

Email: [REDACTED]

FAC-COR Certification Level: Level I

CONTRACTING ACTIVITY:

National Institutes of Health (NIH)
Clinical Center (CC)/Office of Purchasing and Contracts (OPC)
Two Democracy Plaza
6707 Democracy Boulevard, Suite 106
Bethesda, Maryland 20892

2. NATURE AND/OR DESCRIPTION OF THE ACQUISITION BEING APPROVED:

This action will be awarded as a new sole source contract to ArgonSoft. The Government intends to award a Firm-Fixed-Price (FFP) FAR 16.504 to provide Software Maintenance Agreement to the existing Laboratory Information Management system (LIMS) that has already been installed by ArgonSoft in the CC/PET department under contract 75N90023P00826. ArgonSoft is the sole vendor capable of providing the required software maintenance support of this proprietary and customized software.

3. DESCRIPTION OF THE SUPPLIES AND SERVICES REQUIRED, INCLUDING THE DELIVERY SCHEDULE AND/OR THE PERIOD OF PERFORMANCE AND DOLLAR VALUE OF THE ACQUISITION:

This request is for purchase of a software maintenance agreement between ArgonSoft and CC/PET. Coverage (phone support and software updates) involves up to 200 hours of man hour support for the 12 month period including web support/phone calls/video chat and bug fixes/remote upgrades to the software.

The Period of Performance (PoP) is twelve (12) months from time of award.

4. IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION:

☒ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements [41 USC 253(c) (1)]: The supplies or services required by the Agency are available from only one responsible source and no other supplies or services will satisfy agency requirements.

☐ FAR 6.302-1(c) – Only one responsible source and no other supplies or services will satisfy agency requirements [41 USC 253(c) (1)]: Brand Name Justification. The use of such descriptions in the acquisition is essential to the Government's requirement, thereby precluding consideration of a product manufactured by another company.

☐ FAR 6.302-2 – Unusual and compelling Urgency [41 USC 253(c) (2)]: The agency's need for the supplies or services is of such an unusual and compelling urgency that the government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. (NOTE: These justifications may be made and approved after contract award when preparation and approval prior to award would unreasonably delay the acquisition. Lack of advanced planning is not justification for the use of this authority.)

☐ FAR 6.302-3 – Industrial Mobilization; engineering, development, or research capability; or expert services [41 USC 253(c) (3)]: It is necessary to award the contract to a particular source or sources in order (i) to maintain a facility, producer, manufacturer, or other supplier available for furnishing supplies or services in case of a national emergency or to achieve industrial mobilization, or (ii) to establish or maintain an essential engineering, research, or development capability to be provided by an educational or other nonprofit institution or a federally funded research and development center or (iii) to acquire the services of an expert neutral person for any current or anticipated litigation or dispute.

☐ FAR 6.302-4 – International agreement [41 USC 253(c) (4)]: Full and open competition need not be provided for when precluded by the terms of an international agreement or a treaty between the United States and a foreign government or international organization, or the written directions of a foreign government reimbursing the agency for the cost of the acquisition of the supplies or services for such government.

☐ FAR 6.302-5 – Authorized or required by statute [41 USC 253(c) (5)]: A statute expressly authorizes or requires that the acquisition be made through another agency or from a specified source, or the agency's need is for a brand-name commercial item for authorized resale.

☐ FAR 6.302-6 – National security [41 USC 253(c) (6)]: The disclosure of the agency's needs would compromise the national security unless the agency is permitted to limit the number of sources from which it solicits bids or proposals.

☐ FAR 6.302-7 – Public Interest [41 USC 253(c) (7)]: The agency head determines that it is not in the public interest to use full and open competition in the particular acquisition concerned.

5. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:

- ArgonSoft is the proposed vendor for this acquisition because ArgonSoft is the designer/manufacture of the NIH LIMS (called ASIS.TO).

6. A DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS PRACTICABLE:

Notice of Intent to Sole Source will be published on FBO for X days.

7. DEMONSTRATION THAT THE ANTICIPATED COST WILL BE FAIR AND REASONABLE:

[REDACTED]
account [REDACTED]
[REDACTED]

8. DESCRIPTION OF MARKET RESEARCH CONDUCTED AND THE RESULTS OR STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED:

In accordance with FAR Part 10.002 (2) and (b)(1), methods used to conduct market research consisted of reviewing the results of recent market research undertaken to meet similar or identical requirements, querying the Government wide database of contracts and other procurement instruments intended for use by multiple agencies as well as other Government and commercial databases that provide information relevant to agency acquisitions. Methods also included reviewing catalogs and other generally available product literature published by manufacturers, distributors, and dealers. The methods were conducted in a manner that sought to determine the best acquisition strategy to acquire the items requested by the customer and meet the needs of the Government.

The following venues were queried during the Market Research Process:

- 1) Required Sources of Supplies and Services in accordance with FAR 8.002
 - a. GSA Advantage
 - b. GSA eLibrary
 - c. Excess from Other Agencies
 - d. UNICOR (Federal Prison Industries)
 - e. Supplies which are on the Procurement List maintained by the Committee for Purchase From People Who Are Blind or Severely Disabled
 - f. Wholesale Supply Sources
 - g. Mandatory Use of NAC Schedules
 - h. Other Sources (including educational and nonprofit institutions)
- 2) Other Sources Queried during the Market Research Process:
 - a. System for Award Management (SAM)
 - b. Small Business Administration Dynamic Search
 - c. Vendor Information Pages

After an extensive query and survey of the market was completed, only one (1) capable source was discovered who can suffice the complex deliverables of this requirement. The company is as follows

COMPANY NAME: Argon Soft

COMPANY POC: Gabor Nagy gabor.nagy@argonsoft.hu

COMPANY ADDRESS: H-1133 Budapest, Vaci ut 76 (Tower 1, 7th floor)

[REDACTED]

NAICS:

SOCIO-ECONOMIC CATEGORY: Small Business

9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION:

There are currently no other supporting facts for the use of Other Than Full and Open Competition to be utilized at this time. All current and relevant information involved with the use of Other Than Full and Open Competition has been provided within this justification document.

10. LISTING OF SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION:

There were no other sources that expressed interest in writing or in any other capacity about this acquisition.

11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE REQUIRED SUPPLIES OR SERVICES:

For future acquisitions, events such as Industry Days may be conducted to grant prospective contractors the opportunity to complete an accompanied tour of the NIH Clinical Center to become more familiar with highly specialized acquisitions of this nature. These in-person visits will be more beneficial for the removal of competition barriers in contrast with Requests for Information (RFI) or Sources Sought Notices. Business Events that promote the articulation of NIH requirements would allow for prospective contractors to provide Capability Statements or network with incumbent contractors who possess the experience needed to suffice specialized requirements of this nature.

12. ADMINISTRATIVE OFFICER/PROGRAM OFFICIAL CERTIFICATION:

Pursuant to FAR 1.707 Signature Authority, this Justification has been thoroughly reviewed and recommends approval. I certify that the above facts and representations under my cognizance that are included in this Justification are accurate and complete to the best of my knowledge and belief.



13. CONTRACTING OFFICER'S CERTIFICATION

Pursuant to FAR 1.707 Signature Authority, this Justification has been thoroughly reviewed and recommends approval. I certify that the above facts and representations under my cognizance that are included in this Justification are accurate and complete to the best of my knowledge and belief.

